

Please note that this document contains two letters*

Re: Initial Response to December 2025 SLC Report

December 10th, 2025

From:

Samantha McDonald, PhD
Resident Liveaboard of Newport Beach
Mooring H510, Newport Beach, CA

To:

State Lands Commission Chair and Chief Counsel
100 Howe Avenue, Suite 100 South
Sacramento CA 95825

Dear SLC Commissioners and Staff,

In addition to the letter below (Re: Public Trust Doctrine and Liveaboards in Newport Beach Harbor – Request that the SLC obtain Attorney General Opinion), I would like to briefly respond to the initial published report for the Agenda Item 105 for the December 2025 Meeting.

Please note that this response was done in haste to meet the 3-business-day minimum public comment requirements. Despite having only a few hours to read the first 11 pages of the report published today, I feel it necessary to respond. At the time of writing, the full report has yet to be published. That being said, I believe what has been published thus far already invites substantial deliberation, and I am seriously concerned about the legal analysis underpinning this report's conclusions about liveaboards.

I want my brief response to target the one and only paragraph in regard to liveaboards thus far:

“The Report does not discuss the legal issues surrounding liveaboards. In general, liveaboard use is inconsistent with the Public Trust Doctrine, although there are some cases where the Commission allows a limited number of liveaboards when the use supports another Public Trust-consistent use, such as providing security services in a marina. Nevertheless, even if liveaboard use was consistent with the Public Trust Doctrine, the City has discretion to choose between competing Public Trust uses. Therefore, even if liveaboards were entirely consistent with the Public Trust Doctrine (which as explained, they are not), the City could decide to not allow liveaboard use in favor of increasing the quantity of moorings for solely recreational use.” CSLC Staff, pg9.

I would like to respond to this paragraph sentence-by-sentence:

“In general, liveaboard use is inconsistent with the Public Trust Doctrine...”

- Liveaboards are a water-oriented use and a recreational-first use that supports with the public trust doctrine. Living aboard is *incidental* to recreation, and often necessary for specific forms of recreation such as cruising.
- I believe staff and counsel are once again using the Attorney General Opinion on Redwood City House Boats¹. House Boats are banned in Newport Beach. House boats are not water-oriented vessels, nor do they prompt public trust activities.

“...although there are some cases where the Commission allows a limited number of liveaboards when the use supports another Public Trust-consistent use, such as providing security services in a marina”

- “Security Services” is not a public-trust use. Rather, it is an *incidental* use to the primary public-trust use, which is recreation.
- *People v. City of Long Beach* (1959) also makes it clear that residence of persons that maintain the “the harbor and commerce, fishery, and navigation” are “not only consistent with but in direct aid of the basic trust purpose to establish and maintain a harbor and necessary.” at 879². This is relevant to liveaboards that are fishermen, captains, and harbor tour guides that directly aid basic trust purposes.

“Nevertheless, even if liveaboard use was consistent with the Public Trust Doctrine, the City has discretion to choose between competing Public Trust uses.”

- I am very concerned with this statement. I ask the Commission, what is the difference between a person who sails to Catalina island 10 times a year and lives on their boat, compared to a person who sails twice a month and does not live on their boat? The recreational use is still the same.
- The City has discretion to choose between *different* public trust uses (e.g., marina vs. beach). They do not have discretion to eliminate one group of recreational users in favor of another group for doing the same exact thing.
- It could be argued that liveaboards, especially those that are employed by the harbor or cruise, are using their boats *more* for recreation and public trust aligned activities than those that use their boat sparingly.

“Therefore, even if liveaboards were entirely consistent with the Public Trust Doctrine (which as explained, they are not), the City could decide to not allow liveaboard use in favor of increasing the quantity of moorings for solely recreational use.”

- Once again, the primary use of boats for liveaboards is recreational use. It’s unclear to me how a boat that is used ‘solely’ for recreational purposes is better than a boat that is used primarily for recreation *and* aids in the basic public trust purposes of the harbor through employment, safety, and management of the tidelands.
- I also want to note that the City of Newport Beach allows a mere 7% of all moorings to have liveaboards. There are nearly 800 offshore moorings total. I am confident that there are

¹ Letter from Andrew M. Vogel, Deputy Attorney General, to Jennifer Lucchesi, Executive Officer, California State Lands Commission (June 19, 2015).

² *People v. City of Long Beach* (1959) 51 Cal.2d 875.

more moorings vacant and empty without a boat in Newport Beach right now than there are liveaboards. For what cause would the City decide to takeaway liveaboards if such an activity (that once again aligns with the public trust and supports public trust purposes) does not infringe upon the ability for others to participate in boating recreation?

There is ample evidence to support the liveaboards existence in Newport Beach, and the CSLC should recognize the legality of liveaboards and ensure its protection in the face of extinction.

I once again urge the Commission to:

1. Request an Attorney General inquiry of liveaboards in Newport Beach, which is tailored to Newport Beach's unique recreational circumstances.
2. Provide language in the staff report that recognizes the liveaboards and how we may align with the public trust principles of California.
3. Urge the City of Newport Beach to maintain liveaboards and, if necessary, request formal intervention from the Attorney General to protect the liveaboard community.

Re: Public Trust Doctrine and Liveaboards in Newport Beach Harbor – Request that the SLC obtain Attorney General Opinion

August 27th, 2025

From:

Samantha McDonald, PhD
Resident Liveboard of Newport Beach
Mooring H510, Newport Beach, CA

To:

State Lands Commission Chair and Chief Counsel
100 Howe Avenue, Suite 100 South
Sacramento CA 95825

Dear Chair Kounalakis and Chief Counsel,

I am writing in response to comments made by the California State Lands Commission (CSLC) Chief Counsel on August 21st, 2025 during Agenda Item 66, “Report on the City of Newport Beach’s Public Trust Lands Management.”

I respectfully request that, well before accepting a final draft of this report, **the Commission formally seek an Attorney General opinion specific to the situation of liveaboards in Newport Beach.** This request is based on **strong evidence that the legal guidance provided by CSLC Chief Counsel was overbroad and risks misapplying the Public Trust Doctrine to Newport’s liveboard community.** Without further investigation, these decisions could lead to the unjust eradication of a century-old community in the California tidelands.

To summarize my claims:

1. Newport Beach liveaboards are recreational and public trust-aligned.
2. The Granting Act of Newport Beach enables private use on public tidelands.
3. The State has historically allowed private use on public land for specific purposes, including liveaboards in the tidelands across California.
4. The housing crisis implores the CSLC to prioritize, protect, and preserve affordable housing.

CSLC Concerns From The August 21st Commission Meeting

During the State Lands Commission’s Meeting on August 21st, the Commission discussed a draft report written by Commission Staff to review topics related to the City of Newport Beach’s mooring permit program.³ This review came after more than a year of investigation by the State Lands Commission and continuous input by concerned tidelands users who believe that the City of Newport Beach unlawfully discriminated against mooring holders in comparison to other tidelands

³ Cal. State Lands Comm’n, Staff Report 66 (Informational), Grant File No. 09-02 (Aug. 21, 2025).

users. The staff analysis supported the public's concerns, stating that Newport Beach may have violated both the granting statute and the California constitution in relation to rates.

However, Staff concluded in their report that the City of Newport Beach's plan to use their proposed City License program, a program converts all Mooring Permits to short-term City-owned licenses, was reasonable. Staff recommended that Newport Beach move forward with their license program. During public comment the members of the public, including myself, noted that the short-term city-owned licenses were access-restricting, as the program eradicates the liveaboard community in Newport Beach because short-term licenses do not allow liveaboards.

During the meeting, Chair Kounalakis asked Commission Staff and Counsel why the removal of liveaboards was not addressed in the draft report. Chief Counsel Seth Blackmon responded to Chair Kounalakis stating:

"Your predecessor in this position did agree to waive privilege on an Attorney General opinion on liveaboards ... because it privatizes uses of public land and it takes that out of the public."

Chair Kounalakis responded, "I am sorry Seth, but are you saying the liveaboards are not allowed?"

Chief Counsel Seth Blackmon responded, "We are saying that under the Attorney General, yeah, in the current framework of the public trust doctrine, liveaboards are a privatization of public land [sic]."

Chief Counsel explained that this reasoning was based on a letter from the Attorney General's office of California provided to the State Lands Commission on June 19th, 2015.⁴ This letter provides informal advice from the Attorney General concerning whether private residential use of houseboats on sovereign tidelands in Redwood City, California is legally permissible. This letter was made available to the public on January 4th, 2016.

This interpretation of the Attorney General's letter and its application to liveaboards in Newport Beach is, to the best of my knowledge, incorrect. The reasonings for this argument are the following:

1. Newport Vessels are Recreational and Public Trust-Aligned

In 2016, the SLC reviewed a Draft Environmental Impact Report (DEIR) for the Redwood City Inner Harbor Specific Plan. The Commission was concerned about the use of House Boats in Redwood City's Docktown Marina as a form of residence on public tidelands. House boats are designed for permanent residential use. House boats are often non-navigable structures, attached to land-based utilities, and designed for non-maritime uses. In simpler terms, they are floating houses⁵. 80% of

⁴ Letter from Andrew M. Vogel, Deputy Attorney General, to Jennifer Lucchesi, Executive Officer, California State Lands Commission (June 19, 2015).

⁵ The Attorney General's letter uses the term liveaboard to describe residents of house boats but according to Cal. Code Regs. Tit. 14, § 10128, "A 'live-aboard boat' is a boat that is not a transient boat, that is capable of being used for active self-propelled navigation, and that is occupied as a residence as that term is defined in California Government Code Section 244." House boats are often non-navigational and would most likely not be defined as a liveaboard boat.

berths in Redwood City were used for residential houseboats, at the time of the Attorney General's review.

In *People ex rel. San Francisco Bay Conservation and Development Com. v. Smith* the court concluded "A houseboat is neither a water-oriented use nor a use that furthers the public trust and does not serve a statewide public benefit."⁶ The Attorney General cited this case among others to highlight that the non-recreational use of House Boats does not align with the Public Trust Doctrine.

By contrast, Newport Beach's Harbor Code, Title 17, prohibits house boats.⁷ Newport Beach liveaboards are recreational-first, fully navigational boats, consistent with the public trust doctrine of boating recreation recognized by California courts.⁸

These are sailboats and motorboats designed and used primarily for coastal access and recreation. Living aboard is *incidental* to recreational boating, not a substitute for it. Unlike Redwood City where 80% of berths in the marina were used for residential purposes, the City of Newport Beach currently only allows 7% of vessels in Newport Beach for liveaboard use; it is not the primary use of the mooring fields.

The evidence for such recreation by the liveaboards community can be seen in both the City rules and practices of the community. For example, the City of Newport Beach permits a system in which empty mooring balls can be rented out by the City while the mooring holder is away. This is due to the fact that all Newport Beach vessels on moorings are navigable and for recreation.

The City of Newport Beach also requires liveaboards to pass an annual inspection in which they must prove navigability and safety standards to ensure that such boats are maintaining their designed use and standards for recreational boating and safety. No other boats in the harbor; including non-liveaboard boats which utilize the public moorings, yacht clubs moorings, marina boats, or boats on residential piers, must undergo this annual inspection.⁹

As noted above, the City of Newport Beach rents mooring spots when liveaboards and other permittees are away, and there are typically 100 empty mooring balls available each day. Mooring balls do not block public access through privatization, they enhance it, as any public boater can use empty mooring balls while unused by the permittee. Proceeds from fee-use through sublet are collected and kept by the City.

More importantly - most, if not all, liveaboards in Newport Beach are engaged in the activities defined in the Public Trust Doctrine as public use. For example, a large number of liveaboards are cruisers (i.e., boaters who take extended voyages out to sea and other locations). My partner and I spent two cruising seasons in Western Mexico. Our liveaboard neighbors sailed to French Polynesia and back last year; another liveaboard couple sailed their vessel from South East Asia to Newport Beach. This is only a few examples. This form of recreation — long-distance voyaging — is

⁶ *People ex rel. San Francisco Bay Conservation & Dev. Comm'n v. Smith* (1994) 26 Cal.App.4th 113, 123.

⁷ Newport Beach, Cal., Mun. Code tit. 17, § 17.35.020 (2025).

⁸ *Marks v. Whitney* (1971) 6 Cal.3d 251, 259.

⁹ Newport Beach, Cal., Mun. Code tit. 17, ch. 17.40 (Live-Aboards) (current through Ordinance No. 2025-6).

inextricably linked to residence aboard, and therefore directly tied to navigation and recreation under the trust.

Chief Counsel stated during the August meeting:

“...We generally highlight the fact it is a public trust consistent use, the piers are, because it's actually access for waterborne activities with boats. [sic]” - Chief Counsel Blackmon, State Lands Commission Meeting, August 21st

The mooring liveaboards are not different. We live on vessels to access waterborne activities and services with our vessels.

In addition to recreation, the California Supreme Court in *People v. City of Long Beach*, explained that facilities serving maritime personnel could be consistent with trust purposes:

“Personnel are as vital to these activities as the ships and other facilities used therein, and no distinction can properly be drawn between providing dormitories and other facilities for maritime personnel and docks for ships, warehouses for goods (*City of Oakland v. Williams*, 206 Cal. 315, 331 [274 P. 328]).”¹⁰

This reasoning underscores the importance of residents connected to navigation and other maritime functions. In Newport Harbor, liveaboards are not isolated homeowners; they are active participants in maritime life. The liveboard community includes fishing boat crews, charter captains, boat repairmen, delivery captains, and recreational sailors that reside on their vessels in order to support navigation and recreation — both recognized trust purposes.

Thus, the Commission's Counsel cannot argue that liveaboards prevent recreational use when the liveaboards are indeed recreational users and users that serve maritime purposes that are essential to the use of the tidelands. The liveaboards are consistent with Public Trust purposes.

2. The Granting Act of Newport Beach Enables Private Use on Public Tidelands

Redwood City's grant (Stats. 1945, ch. 1359 [Redwood City grant]) is older and narrower in scope than Newport Beach's tideland grant. It is centered on “harbor, aviation, commerce, navigation and fishery” purposes and related works. There is no broad recreation language (e.g., public beaches, marinas, aquatic playgrounds.) Redwood City's narrower grant was one reason the State Attorney General concluded in their informal analysis that Docktown's private residential House Boats were inconsistent with both the public trust and the grant itself.

Newport Beach's grant (Stats. 1978, ch. 74 [Newport Beach Beacon Bay Bill]) is broader; the grant expressly denotes uses in which there is a general statewide interest. The original grant was dated July 25, 1919 but there have been several separate amendments since then, including the new grant in 1978. The Beacon Bay grant explicitly lists public marinas, bathing beaches, aquatic playgrounds,

¹⁰ *People v. City of Long Beach* (1959) 51 Cal.2d 875.

recreational facilities, public parks, and open space, harbor, commerce, and navigation. The Beacon Bay grant lets the City lease tidelands for those enumerated, trust-consistent uses.

The Beacon Bay Bill also contains special instances for privatization on public land. For example, there are private residential homes in Newport Beach that lay on public tidelands. These were once submerged lands that were artificially filled and then legislatively authorized for residential leaseholds¹¹. These houses are established on lease land, in which they are required to pay into the tidelands fund to own and maintain.¹² Liveaboards in Newport Beach, also pay funds into the tidelands, as well as an additional fee to reside on their vessels, just as the privatized homes in Beacon Bay.

Liveaboards do not represent an outlier to the charter for Newport Beach, nor should liveaboards be scrutinized for residential use of public tidelands when much wealthier Newport residents have multi-million dollar homes on public tidelands, approved by the tideland grant.

The homes on tidelands in Beacon Bay exist only because the Legislature enacted a special statutory allowance to allow long-term residential leases. By contrast, Newport's liveaboards remain navigable vessels in open water. They are not fixed homes on filled land, and their primary uses — boating, navigation, recreation — align with core trust purposes. They demonstrate uses of recreation on a public tideland.

3. The State has historically allowed private use on public land for specific purposes, including liveaboards.

“We are saying that under the Attorney General in the current framework of the public trust doctrine, liveaboards are a privatization of public land.” - Chief Counsel Blackmon, State Lands Commission Meeting, August 21st

Mr. Blackmon's assertion that private occupancy of vessels automatically constitutes privatization of public land oversimplifies the court's interpretation of California law. The State Lands Commission does not ban all private uses of public lands; rather, it requires that such uses be consistent with, or incidental to, trust purposes. This includes residential purposes.

The State has accommodated private residential uses on public lands on multiple occurrences where rent/fees are paid for that use. One clear example is University Hills at The University of California Irvine. University Hills is a neighborhood built on state-owned land. The land is held by the Regents of the University of California, and nearly two-thirds of faculty live there under leaseholder arrangements.

Residents of University Hills own their homes but they do not own the underlying land; they pay “ground rent” to a state managed fund and are responsible for maintenance. In practice, University

¹¹ City of Newport Beach, Summary of Proposed Compliance With Stats. 1978, ch. 74 (Beacon Bay) (May 1981), State Lands Commission; Stats. 1978, ch. 74. S3.C (Beacon Bay) (April 1978).

¹² These houses include the home of former Newport Beach Harbor Commissioner, Scott Cunningham - demonstrating a public authority in the harbor having a private home on publicly submerged tidelands.

Hills residents also own and trade their homes on a private market. This model is directly analogous to Newport Beach liveaboards, who own their vessels (the “home”), can transfer the permit, sell their home, and pay rent for space on state lands which are directed into the State.

University Hills was also created as a way to preserve affordable housing for University employees. As I will describe in the next section, such use of state land for purposes of affordability is compliant and endorsed by recent State actions. Just as University Hills demonstrates that private residential use coexists with public land ownership when aligned with state objectives, liveaboards in Newport Beach demonstrate that residence aboard can coexist with, and in fact advance, public trust purposes of boating, navigation, and recreation.

Additional examples of State land with private residences exist. The Department of Parks and Recreation maintains nearly 500 state-owned residences, including houses, mobile homes, dorms, and trailers for park employees—often at highly subsidized rents.¹³

In *People v. City of Long Beach*, 51 Cal.2d 875 (1959), the California Supreme Court determined that residence of persons that maintain the “*the harbor and commerce, fishery, and navigation*” are “*not only consistent with but in direct aid of the basic trust purpose to establish and maintain a harbor and necessary.*” at 879. This is relevant to liveaboards that are fishermen, captains, and harbor tour guides that directly aid basic trust purposes.

Finally, and most importantly, **the Attorney General and the State Lands Commission have a recorded history of allowing liveaboards.**

The Attorney General’s letter to the City regarding Redwood City cites a historical letter from William Northrop, Commission Executive Director, to State Sen. Dennis E. Carpenter on January 10, 1978. In that case, the State Lands Commission staff reviewed an ordinance to approve liveaboards in Berkeley.¹⁴ The CSLC staff and the Attorney General’s Office determined it was not in violation of the public trust and the general policy prohibiting residences on public trust land to have liveaboards in Berkeley.¹⁵ This is because the liveaboards were a trust-use serving a state-wide purpose. From what I understand, the City of Berkeley still maintains this liveaboard opportunity¹⁶.

Today, many cities in California allow berths in private marinas to be liveaboards, including cities like Monterey, Morro Bay, and Ventura.¹⁷ The San Francisco Bay Conservation and Development Commission (BCDC) created a 10% liveaboard allowance in the “Bay Plan” of 1969, and this

¹³ Gutierrez, M. (2020, December 11). California parks workers. Los Angeles Times.

¹⁴ Letter from William Northrop, Commission Executive Director, to State Sen. Dennis E. Carpenter (Jan. 10, 1978). It is interesting to note that the reasoning for liveaboards in this case requested for security and surveillance, which the Newport Beach Liveaboards community has pointed out multiple times in meetings as a primary benefit to liveaboards. The liveaboard community of Newport Beach has used CSLC public comment to share their stories of life saving and boat-saving experiences in the Harbor.

¹⁵ Cal. State Lands Comm’n, Minutes of the Meeting of December 20, 1978, at 2660-61.

¹⁶ A liveaboard waiting list is still available for liveaboards on the City of Berkeley’s website. <https://berkeleyca.gov/sites/default/files/documents/Liveaboard%20App%26Notice.pdf>

¹⁷ Monterey, Cal., Mun. Code § 17-43; Morro Bay, Cal., Mun. Code § 15.40; Burgh, J. Office of the Auditor-Controller - County of Ventura California. Audit of the Harbor Department’s Management of Channel Islands Harbor Boat Slip Inventory. (October, 2023)

commission authorizes liveaboard use across the San Francisco Bay Area.¹⁸ In both Monterey and the BCDC, it is made clear that liveaboards are incidental to regular use of the open water, but service state-wide purposes that align with the public trust doctrine.¹⁹

Lastly, the City Newport Beach has no restrictions on the number of liveaboards that can exist in private marinas.²⁰ The Newport Beach City Council specifically rejected the Harbor Commission's proposed 7% limit for commercial marinas when they updated Title 17 on January 28, 2020, leaving commercial marinas without numerical restrictions on liveaboards.²¹ These liveaboards, among many other marinas in California, have not been contested by the State Lands Commission, and such denial would create disparity between liveaboards on moorings in Newport Beach and other instances in California and within the City.

The Counsel's claim that private residents on state-land is impermissible and tied to the liveaboard community of Newport Beach is misguided, and there are clear historical examples where private residences have been approved for public land by the CSLC, including liveaboards across California.

4. The housing crisis implores the CSLC to prioritize, protect, and preserve affordable housing.

To quote the Attorney General's website *"California is in dire need of additional housing...Housing shortages and rising costs are increasing inequality and limiting advancement opportunities for all Californians. For California's vulnerable populations, racial discrimination and inadequate accommodations for people with disabilities are worsening affordability challenges and equal access."*²²

The website also notes that as of 2025, California faces a severe housing affordability crisis, with a shortage of millions of homes needed to meet demand. Over half of California renters are considered "rent burdened," spending more than 30% of their income on housing, and nearly a third are "severely rent burdened," allocating over 50% of their income to rent. Additionally, thousands of affordable housing units are stalled due to lack of funding.²³ This crisis disproportionately affects low-income and marginalized communities, exacerbating homelessness and housing instability across the state.

The Governor's Executive Order N-06-19 from February of 2025 orders the State to seek uses of public land to address housing concerns²⁴. The Newport Beach ordinance, however, undermines these objectives and runs afoul of California's No Net Loss provision.²⁵ By eliminating liveaboard

¹⁸ Bay Conservation and Development Commission. San Francisco Bay Plan (January 1969, as amended).

¹⁹ See Monterey, Cal., Mun. Code § 17-43 D.6 ; Bay Conservation and Development Commission. San Francisco Bay Plan (January 1969, as amended) p.24.

²⁰ Newport Beach, Cal., Mun. Code tit. 17.

²¹ Newport Beach City Council Approves updates to Title 17 – Harbor Code, THE LOG, <https://www.thelog.com/local/newport-beach-city-council-approves-updates-to-title-17-harbor-code/>

²² California Attorney General, Housing, <https://oag.ca.gov/housing> (last visited Aug. 23, 2025)

²³ California Attorney General, Housing, <https://oag.ca.gov/housing> (last visited Aug. 23, 2025)

²⁴ Cal. Exec. Order No. N-06-19 (Feb. 13, 2019)

²⁵ Cal. Gov. Code § 65863 (No Net Loss Law)

housing, the city is removing a form of affordable housing during an ongoing housing crisis. The State Lands Commission risks violating the spirit—and potentially the letter—of its own rules and the State's executive orders by allowing Newport Beach to remove a pre-existing form of affordable housing on public trust lands.

In addition, there is legal precedent in California for regulation around rent and affordability of boaters residing on their vessels. In *Interstate Marina Dev. Co. v. County of L.A.*, 155 Cal. App. 3d 436 (1984), the Court of Appeal of California determined that rent laws in California which aim to restrict rent increases are valid and constitutional as it applies to liveaboards.²⁶ Thus, California courts recognize not only the existence of liveaboards but the application of state rent limits to those that live on their vessels in the tidelands.

The community of liveaboards in California falls within this realm of affordable housing and the need for state-mandated rate limits. Most liveaboards are retirees on fixed income including at least one disabled veteran. Many liveaboards will not be able to afford residences on land at the current rates in California. Newport Beach's liveaboard system, allows these individuals to pay their own way, and not further burden the limited land based subsidized housing inventory. It does not make economic sense for the State to allow the City to push more people into subsidized housing.

Moreover, given the severity of the housing crisis, and various State and local efforts to address it, it must be considered that the vessels on Newport moorings with valid Liveaboard Permits, would be in those spaces anyway. Would it not be logical then, to continue to allow those already occupied spaces, for which rent is paid to the tidelands, to be used as the last means of affordable housing in Coastal Orange County?

It should be noted that the City of Newport Beach is required to create affordable housing set forth by the State of California Housing Element. Newport Beach has been allocated 4,845 new housing units which need to be created with varying affordability levels between 2021 and 2029 under the Regional Housing Needs Assessment (RHNA).²⁷ By eliminating liveaboard housing, the City is stripping away a vital source of affordable housing during a severe statewide housing crisis. If the City were to double the number of liveaboards to 14%, instead of removing them from the Harbor, the City could create hundreds of new affordable housing opportunities that not only align with the public trust but with the affordable housing needs of California. Yet, the City has decided to remove these currently existing affordable housing units, while falling behind on their Housing Element duties.

If the State Lands Commission allows the City of Newport Beach to remove liveaboards, the commission risks violating the intent—and potentially the letter—of the State's own regulations and the Governor's executive orders by removing affordable housing from State lands. The State Lands Commission and the City of Newport Beach will also be contributors to the housing crisis by leaving liveaboard residents with nowhere to go.

²⁶ *Interstate Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435.

²⁷ City of Newport Beach, Resolution 2024-58. 6th Cycle Housing Element Implementation Program.

Conclusion and Request

It is clear from this evidence that CSLC Chief Counsel should further investigate the legal precedent of liveaboards in California in relation to the Public Trust Doctrine. There is ample evidence to support the liveaboards existence in Newport Beach, and the CSLC should recognize the legality of liveaboards and ensure its protection in the face of extinction.

Given these distinctions, I urge the Commission to:

1. Request an Attorney General inquiry of liveaboards in Newport Beach, which is tailored to Newport Beach's unique recreational circumstances.
2. Provide language in the staff report that recognizes the liveaboards and how we may align with the public trust principles of California.
3. Urge the City of Newport Beach to maintain liveaboards and, if necessary, request formal intervention from the Attorney General to protect the liveaboard community.

By doing so, the Commission can stop the eradication of a community that embodies navigation, recreation, affordability, and public access in California.

Thank you for your consideration.

Respectfully,

Samantha A. McDonald, PhD

